NAMATAI CHIMBWANDA
and
TUMAI CHIMBWANDA
versus
PEDZISAI CHIMBWANDA
and
DECIDE TANYARADZWA KUTYAURIPO
(In his Capacity as an Executor)

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 17, 18 November 2025 and 9 February 2026

Civil Trial

P Tavirai with S Mukwekezeke, for the plaintiff
C. Mandizvidza, for the 1st defendant

MAXWELL J:

On 26 January 2023, the plaintiffs filed summons seeking a declaratory order affirming that the distribution agreement signed by the beneficiaries of the Estate of the late Eliah Chibwanda on 14 November 2022, is valid and binding on all beneficiaries, and that it is suitable for use by the second defendant as a guide for distributing the estate among the beneficiaries as reflected in the agreement. In their declaration, they stated that on 19 October 2022, the beneficiaries of the late Eliah Tickey Chimbwanda's estate met to discuss and agree on how to distribute the estate. The beneficiaries drafted a Distribution Agreement, which they agreed to use as a guide for distributing the estate or assets of the late Eliah Tickey Chimbwanda.

It was stated that the agreement was drafted by lawyers representing the parties and presented to the beneficiaries for review, consideration, and signature. After reviewing the terms, the beneficiaries signed the agreement, supervised by their legal representatives. The signed agreement was then forwarded to the executor to facilitate the winding-up of the estate. The first defendant wrote to the second defendant stating that he was no longer in agreement with the Distribution Agreement. As a result, the plaintiffs approached this court seeking a declaration that the Distribution Agreement, which was intended to guide the

distribution of the late Eliah Tickey Chimbwanda's estate, is valid and binding on the first Defendant, including costs on a higher scale.

In response, the first defendant claimed that the agreement was not valid or binding on him because he did not personally sign it. He alleged that he was in Botswana at the time the agreement was signed and stated that he never authorised anyone to sign on his behalf. The first defendant also distanced himself from the signature on the agreement, asserting that as an educated and experienced Chartered Accountant, he couldn't sign a document simply by initials. He claimed that he is capable of executing a complex, hard-to-duplicate signature.

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The second plaintiff testified personally and also on behalf of the first plaintiff. He stated that he is one of the sons of the late Eliah Ticky Chimbwanda. He further mentioned that the deceased had four wives and twenty-two children, two of whom are now deceased. He avers that sometime in October 2022, the beneficiaries of the estate were invited to a meeting to discuss the distribution of their father's estate. He pointed out that the first defendant and his mother and sisters were represented at this meeting by their legal practitioners, Bamu Attorneys, through Mr. Allen Kadye. He stated that after deliberations at the meeting, the parties agreed on a Distribution Agreement, which was eventually drafted and presented to him for signing.

He mentioned that he appended his signature to the first plaintiff's and transmitted the signed agreement to his legal practitioners, who in turn forwarded it to the first defendant's legal representatives. He stated that the agreement was fair in that, although the estate property appeared to be allocated to the male children only, it had been agreed that all the male children would assume responsibility for looking after their female siblings within their respective family branches. He testified that during the meeting, the first defendant's mother, being the only legally recognised surviving spouse, was given the first opportunity to select what she wanted from the estate property. She made her selection as reflected in the Distribution Agreement tendered into evidence by the plaintiffs. In his evidence, the second plaintiff further testified that, owing to tensions typically associated with polygamous families, the deceased's family has long been divided into two hostile camps. He contended that, to his understanding, the first defendant engaged Bamu Attorneys to negotiate and draft the Deed of Settlement on behalf of his family. The attorney duly carried out this mandate. This was confirmed by the 1st defendant himself, who testified that his mother and the entire

family depend on him financially as he is the sole breadwinner. The defendant also paid the legal fees charged by Bamu Attorneys, which, according to the second plaintiff, demonstrates that he was involved from the beginning of the process. He stated that his own legal practitioners advised him that the Distribution Agreement was forwarded to the first defendant's legal practitioners, who then transmitted it to their client for signing and subsequently returned the signed copies. He testified that the issue of the Distribution Agreement was handled entirely by the parties' respective legal practitioners.

It was the legal practitioners who drafted the document and supervised its signing. The deed was circulated among all the concerned parties for signature. The defendant was presented with the deed immediately after it was drafted, and he appended his signature to it. He further testified that several other beneficiaries of the estate are agreeable to the distribution of the estate as set out in the Distribution Agreement, as they have never raised any objections or concerns regarding it. He therefore prayed that this Honourable Court declare the Distribution Agreement signed by the beneficiaries to be valid and binding on the first defendant and that it be used as the basis for the distribution of their late father's estate.

The first defendant opened its case by calling in the evidence of the first defendant. He testified that the Distribution Agreement was null and void on the basis that he was not involved in the meetings, negotiations, and discussions leading up to its signing. He further averred that it did not represent or advance his interests and the interests of some other beneficiaries. He told the court that when the meeting was held, he was in Botswana and there is no way he could have been present at the meeting. The first defendant further testified that he was never informed of the meeting. He further stated that he was not at that material time represented by Mr Allen Kadye. The first defendant mentioned that when he was first told about the agreement by the second defendant, he denied it and its contents and never bothered to request a copy thereof, as it was a nullity as far as he was concerned. He further pointed out that Bamu Attorneys represented his mother in the matter where the plaintiffs were trying to enforce a will in the estate. The first defendant stated that at the meeting, his brother Kumbirayi Chimbwanda, who was representing his 82-year-old mother, was present, along with his two sisters, to assist their mother with anything feminine. He also mentioned that he was not part of the meeting and did not participate in its discussions, nor did he sign the document. He claimed that, despite having a close relationship with his mother and some of his sisters who attended the meeting, none of them informed him about the meeting's details. He told the court that he communicates with his mother at least once a month, and he

is the one who calls her. He reiterated that he had no burden to prove the signature on the document was not his. He insisted that those trying to prove the signature is his had the responsibility to attach another similar signature signed by him, which could convince the court that any reasonable person would conclude it was his signature. The plaintiffs did not provide any such signature.

He also testified that Bamu Attorneys never represented him. He told the court that he was contacted by Bamu Attorneys when the summons were served on them, and it was at that time that he instructed Mr. Allen Kadye to respond to the summons. He stated that before that, the first defendant had never known or spoken to Mr. Allen Kadye. He mentioned that it was actually the plaintiffs' legal representatives who, in the case HC CIV 280/22, a previous estate matter, purported to represent him without his instructions, while Mr. A. Kadye was representing his mother on the other side of the litigation. The first defendant pointed out that he invalidated the agreement when he communicated his position to the second defendant, who was the appointed executor and thus had the authority that was requested to act on the agreement.

He further testified that he saw no need to take any additional steps to consider the agreement and its potential impact, as it remained a nullity to him. When asked why he was in court defending the action against the validity of the agreement, he replied that he was only there because he was summoned by the plaintiffs; otherwise, he believed it was a waste of the court's time since the litigation was unnecessary. He requested that the agreement be disregarded and deemed null and of no effect at all, as it is a nullity.

The first defendant's sister (Mirirai Mirriam Chibwanda) testified as follows. She stated that she was not involved in the discussions and meetings that led to the formulation of the distribution agreement. She further pointed out that the agreement is null and void. She further stated that the agreement does not represent the interests of all the parties concerned, especially the girl child, and urged the court to invalidate it. She also mentioned that the assumption that the male children will, in turn, take care of the female children in the inheritance of their father is highly improbable since the male children are actually struggling with their lives, and they have no capacity to take care of the female children who are now adults and married. She avers that she was never informed about the agreement until the summons were issued. She told the court that she had no basis to seek to invalidate the agreement as she was not a party to it; in any event, she did not have the financial resources to do so. She asked the court to disregard the agreement and not to declare it valid, as it

disadvantaged the female beneficiaries and reduced them to dependents of their male siblings. The first defendant closed its case.

ANALYSIS

The law relating to declaratory orders is set out in terms of section 14 of the High Court Act [*Chapter 7:06*], which gives the High Court jurisdiction to grant declaratory orders. A declarator by nature is a special remedy open to any individual who has an interest in any matter and who seeks a declaration on existing or future rights. Section 14 of the High Court Act provides as follows;

> "High Court may determine future or contingent rights the High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

In the case of *Johnsen* v *Agricultural Finance Corporation* 1995 (1) ZLR 65, the court held that:

> "The condition precedent to the grant of a declaratory order under section 14 of the High Court Act 1981 is that the applicant must be an 'interested' person in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future, or contingent right. The court will not decide abstract, academic, or hypothetical questions unrelated thereto."

Based on the facts before the court, it is clear that the plaintiffs are interested persons with a direct and substantial interest in the distribution of the assets of the deceased estate. The plaintiffs have established a clear and unassailable right to inherit from the deceased's estate.

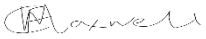
The first defendant's evidence indicated that he did not sign the distribution agreement and is not connected to its contents. He objected to the agreement on the basis that it violates public policy as it seeks to award the estate's residue solely to male potential beneficiaries, excluding female potential beneficiaries. The plaintiffs admitted that the agreement only awarded assets to the male children of the deceased. Moreover, the participation of all the potential beneficiaries in coming up with the agreement was not proved. The agreement is only acknowledged by the two plaintiffs, and nothing has been placed on record to show that the other potential beneficiaries agree with it. It was the plaintiffs' allegation that all beneficiaries agreed, but they failed to submit any evidence to prove this. The plaintiffs did not have Powers of Attorney, which were presented as evidence to show authority to represent other beneficiaries. The agreement cannot be deemed suitable or binding on all

beneficiaries. Therefore, even if the first Defendant is to be estopped from denying the signature said to be his, granting the order requested by the plaintiffs would prejudice other beneficiaries who were not part of the agreement. I believe that the agreement cannot bind those beneficiaries who did not participate in or sign it. Furthermore, the agreement violates public policy by failing to follow the inheritance per stirpes principle. It omits two deceased beneficiaries who were survived by one child. The agreement cannot bind the estates of the two beneficiaries who are deceased as the estates were not represented when the agreement was negotiated and signed.

It is common cause that apart from the deceased's first wife, the agreement only mentions the male beneficiaries. According to the second Plaintiff's evidence, the assets remaining after the first wife had made her choice were distributed amongst the sons who would look after their mothers and sisters. The document does not clearly identify all the beneficiaries. The mothers and sisters to be taken care of are not mentioned. The document is therefore invalid for lack of specificity. The second defendant's evidence shows that the distribution agreement does not represent the interests of all parties involved, especially the girl child. The first defendant's sister's testimony indicates that the male children were not able to care for the female children because they are adults, and most of them are married. The agreement which is contrary to public policy should not be the guide to the distribution of the assets of the deceased.

I am of the view that it would be a great miscarriage of justice to award costs to either party in this case, considering it is a dispute among family members. Accordingly, it is ordered as follows;

1. The plaintiffs' claim be and is hereby dismissed.
2. The distribution agreement signed by some of the beneficiaries of the Estate late Eliah Tickey Chimbwanda on 14 November 2022 be and is hereby declared invalid and not binding on all the beneficiaries and is not fit to be used by the second defendant as the guide on distributing the Estate of Eliah Tickey Chimbwanda amongst the beneficiaries.
3. There shall be no order as to costs.



Chimwamurombe Legal Practice, plaintiff's legal practitioners
DNM Attorneys, first defendant's Legal Practitioners